# VENDOR SERVICE CONTRACT

Falcon Gardens | Memphis, TN

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|---|---|
| **Owner** | Falcon Gardens Owner LLC |
| **Contractor** | PaveRight Sealcoating |
| **Services** | parking lot maintenance |
| **Property** | Falcon Gardens |
| **Effective Date** | January 14, 2025 |

**1. Scope of Services.** Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Falcon Gardens in accordance with the specifications attached hereto. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**2. Term and Termination.** This Contract commences on the Effective Date for a term of 26 months and may be terminated by either party on thirty days' written notice. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**3. Compensation.** Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**4. Insurance.** Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**5. Independent Contractor.** Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**6. Standard of Performance.** Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**7. Indemnification.** Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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**8. Service Levels.** Contractor shall respond to emergency calls within four hours and routine requests within two business days. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**9. Scope of Services.** Contractor shall furnish all labor, materials and equipment necessary to perform parking lot maintenance at Falcon Gardens in accordance with the specifications attached hereto. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

**10. Term and Termination.** This Contract commences on the Effective Date for a term of 23 months and may be terminated by either party on thirty days' written notice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**11. Compensation.** Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**12. Insurance.** Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**13. Independent Contractor.** Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**14. Standard of Performance.** Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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**18. Term and Termination.** This Contract commences on the Effective Date for a term of 11 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

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**22. Standard of Performance.** Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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# Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Falcon Gardens Owner LLC

By: Jerome Vasquez Title: President Date: 01/14/2025

_____

Hannah Ito

By: Elena Dixon Title: President Date: 01/14/2025

## Exhibit A - Property

Falcon Gardens, 5955 Station Parkway, Memphis, TN 92868. Parcel containing approximately 10.80 acres, together with all improvements thereon.

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